SUB-CONTRACT

Between

CBRE SOUTH ASIA PRIVATE LIMITED

AND

[INSERT NAME OF VENDOR]

FOR

WORKS

THIS AGREEMENT IS MADE ON THIS [INSERT DATE]

BETWEEN CBRE South Asia Private Limited, a company incorporated under the Companies Act, 1956 and having its registered office at PTI Building, Ground Floor, 4 Sansad Marg, New Delhi – 110 001 hereinafter called "CBRE") of the one part

and

[INSERT NAME OF VENDOR] whose office is situated at [----------] (hereinafter called "Sub-Contractor") of the other part.

WHEREAS:

A. CBRE is engaged by [INSERT NAME OF CBRE CLIENT] vide Main Contract DATED [INSERT DATE OF MAIN CONTRACT] executed between CBRE and [INSERT NAME OF CBRE CLIENT] for execution of Main Contract Works.

B. CBRE seeks to engage the Sub-Contractor to perform some or all parts of the Main Contract Works.

C. Sub-Contractor possesses the requisite skills, training, expertise and experience to perform the Works called for under this Sub-Contract and wishes to perform such Works based on the Standard Terms and Conditions for Work attached hereto as Annexure A.

NOW IT IS HEREBY AGREED AS FOLLOWS:

(1) For the consideration hereinafter mentioned, the Sub-Contractor shall complete the Works subject to the said Standard Terms and Conditions for Work.

(2) CBRE will pay the Sub-Contractor the sum as shall become payable in accordance with the said Standard Terms and Conditions for Work attached hereto for the construction, and completion of the Works.

IN WITNESS hereof the parties have signed in the presence of the subscribing witness,

Signed for and on behalf of CBRE by:

_____

SIGNATURE OF Authorized Signatory

In the presence of:

_____
Witness

Signed for and on behalf of SUBCONTRACTOR by:

_____

SIGNATURE OF Authorized Signatory

In the presence of:

_____
Witness

Date:_____

Annexure A - Standard Terms and Conditions for Work

Definitions:

In these Conditions the following expressions have the following meaning:

Applicable Laws:	All applicable regional, country, and local statutes, laws (including the common law), ordinances, rules, codes, and regulations governing Sub-Contractor, the Works and the Site, including those of applicable regulatory bodies, governmental agencies, tribunals, instrumentalities, or any subdivisions thereof or other applicable entities exercising executive, legislative, judicial, taxing, regulatory or administrative powers of or pertaining to government including, without limitation, applicable import and export control laws, anti-corruption laws prohibiting the payment of commercial or private bribes, and any other applicable anti-corruption laws.
CBRE:	CBRE South Asia Private Limited
CBRE Project Manager:	The person notified from time to time by CBRE to the Sub-Contractor as the CBRE representative managing the Sub-Contract.
Client:	The person who has engaged CBRE South Asia Pvt. Ltd ("CBRE") for the execution of the Main Contract Works.
Client Data:	All data and information, in any form, provided or made available to the Sub-Contractor by or on behalf of the Client or its affiliates or otherwise obtained or created by the Sub-Contractor for or on behalf of the Client or its affiliates, including (i) all data and information obtained, developed or produced by the Sub-Contractor specifically for the benefit of the Client in connection with this Sub-Contract, (ii) all Client data and information to which the Sub-Contractor has access in connection with this Sub-Contract, (iii) all reports provided to CBRE or the Client by the Sub-Contractor pursuant to this Sub-Contract, and (iv) all data and information derived from Client data and information provided or made available to the Sub-Contractor by or on behalf of the Client or its affiliates.
Commencement Date:	The date stated as such in the Order.
Conditions:	These standard terms and conditions.
Confidential Information:	Any information of CBRE or Client that is not generally known to the public and at the time of disclosure is identified, or would reasonably be understood by the Sub-Contractor, to be proprietary or confidential, whether disclosed in oral, written, visual, electronic or other form, and which the Sub-Contractor (or its subcontractors or agents) observes or learns in connection with this Sub-Contract. Confidential Information includes, but is not limited to: (a) business plans, strategies, forecasts, projects and analyses; (b) financial information and fee structures; (c) business processes, methods and models; (d) employee and

	service provider information; (e) materials, product and service specifications; (f) manufacturing, purchasing, logistics, sales and marketing information; and (g) the terms and conditions of this Agreement. Confidential Information also includes Personal Data and Client Data.
Completion Date:	The date stated as such in the Order or if no such date is stated, the date agreed between the Sub-Contractor and the CBRE Project Manager.
Data Protection Legislation	Any Applicable Law in force from time to time relating to privacy legislation and guidance issued by data protection regulators in the relevant jurisdiction.
Intellectual Property Rights:	All patents, know-how, copyrights, trade or service marks, design rights, and all other intellectual property rights of any kind.
Main Contract:	The contract between the Client and CBRE in relation to the Main Contract Works
Main Contract Valuation:	The date of the main valuation carried out on site and typically set by the Client.
Main Contract Works:	The works carried out at the Site by CBRE under the Main Contract.
Personal Data:	Any Personal Data (as defined in Applicable Laws) in respect of which CBRE (or any member of its group), or any Client or its officers, directors, shareholders, employees, agents, representatives, subsidiaries, affiliates, successors, and assigns, is a Data Controller (as defined in Clause 13), and which is Processed by the Sub-Contractor under or in connection with this Sub-Contract from time to time.
Process:	"Process" has the meaning given to it under the Data Protection Legislation but, for the purposes of this Sub-Contract, it shall include both manual and automatic processing.
Site:	The actual place or places where the Works are to be performed by the Sub-Contractor.
Sub-Contract:	The agreement between CBRE and the Sub-Contractor, comprising these Conditions and the Order.
Sub-Contractor:	The person to whom the Order is addressed.
Sub-Contractor Personnel	The officers, employees, and agents of the Sub-Contractor; and (b) the officers, employees, and agents of the Sub-Contractor's suppliers, service providers or subcontractors.
Works:	This works to be performed by the Sub-Contractor in accordance with the particulars set out in the Order (in the term includes any Bespoke Works referred to in clause 11).
Working Day:	A day other than a public holiday in India.

Work Order/Order: The order issued by CBRE setting out the particulars of the Works required to be performed by the Sub-Contractor and all other terms specific to the Works, and includes all documents referred to in it.

1 General

1.1. The headings to these Conditions of this Sub-Contract are for convenience only and will not affect its construction or interpretation.

1.2. In these Conditions:

a. words denoting any one gender include all genders and vice versa and the singular includes the plural and vice versa;

b. references to persons include individuals, partnerships, bodies corporate and unincorporated associations;

c. a reference to a clause is a reference to a clause or sub-clause of these Conditions;

d. reference to statutes or statutory provisions shall be construed to include references to those statutes or provisions as amended or re-enacted from time to time; and

e. the words and phrases "other", "including" and "in particular" shall not limit the generality of any preceding words.

1.3. In the event of any conflict whatsoever between these Conditions and any part(s) of the Order and associated documentation, the terms of these Conditions shall prevail.

1.4. Following the issuing of an Order the Sub-Contract shall be formed, and a binding contract shall exist to supply the Works, on the earlier of the Sub-Contractor indicating its acceptance of the Order (e.g. by a written or oral order confirmation) or commencing performance of the Order. For the avoidance of doubt unless otherwise agreed in writing CBRE does business only on these Conditions and any Sub-Contractor who makes offers to CBRE or accepts offers made or orders placed by CBRE (whether expressly or by performance) shall be deemed to accept these Conditions to the exclusion of all others including the Sub-Contractor's own business terms.

2 Appointment

2.1 Subject to and in accordance with the terms of the Sub-Contract, CBRE appoints the Sub-Contractor and the Sub- Contractor accepts the appointment as an independent contractor and agrees to provide the Works at the Site. CBRE reserves the right to appoint other sub-contractors in respect of other and similar works.

3 Main Contract

3.1 The Sub-Contractor shall be deemed to have full knowledge and understanding of the contents and requirements of the Main Contract.

3.2 The terms and conditions of the Main Contract are deemed to be incorporated into and form part of the Sub-Contract. In the event of any conflict the provisions of the Sub-Contract shall prevail.

3.3 The Sub-Contractor shall perform the Works so that no act, error or omission on its part shall cause or contribute to any breach by CBRE of the Main Contract and the Sub-Contractor shall carry out the Works in accordance with all the requirements (including all timescales, specifications and service levels) of the Main Contract and shall (except to the extent provided otherwise in the Sub-Contract) assume all of CBRE's obligations and liabilities under the Main Contract in relation to the Works.

3.4 The Sub-Contractor hereby acknowledges that a default, error, omission or breach of the Sub-Contract by the Sub-Contractor may result in liability for CBRE to third parties for damages, penalties, costs and expenses (including under the Main Contract and other contracts made by CBRE in connection therewith). All such liability is hereby agreed to be within the contemplation of the Parties as recoverable losses of CBRE.

4 Price & Payment

4.1 The total price to be paid for the Works shall be the sum stated on the Order. Unless otherwise stated in the Order, the price will be: -

a. a lump sum price for the entire Works;

b. fully fixed for the duration of the Sub-Contract;

c. inclusive of all charges for packaging (and the return thereof), packing, shipping, carriage, insurance, delivery, off- loading to the Site, installation, testing and/or commissioning, production of operating and maintenance manuals (and associated documents) and any duties, imposts or levies other than goods and services tax;

d. subject only to adjustment in respect of changes to the Works in accordance with clause 10; and

e. exclusive of any applicable goods and services tax (which shall be payable by CBRE subject to receipt of a GST invoice).

4.2 The Sub-Contractor is deemed to have considered the details of the Order and inspected the Site and to have satisfied itself regarding any circumstances, conditions or restrictions which may affect the Works and failure to fully consider instructions or information in the Order or to inspect the Site or take due note of prevailing conditions will in no way permit the Sub-Contractor to claim for any additional costs or expenses whatsoever.

4.3 The Sub-Contractor will be required to prepare and submit, within seven days of a request by CBRE, a fully detailed and quantified schedule of rates summating to the sum stated on the Order, for agreement by CBRE. On acceptance by CBRE the quantities will be deleted and the rates used as the basis for pricing any variations to the Sub-Contract, which CBRE may instruct.

4.4 On or before the date in each month agreed between CBRE and the Sub-Contractor (the "Agreed Date"), or the 28th of the month if no date is agreed, the Sub-Contractor shall submit to CBRE a

signed application for payment (the "Application") together with such documentation as CBRE may require for the purpose of verifying the amount stated on the Application. The Application must record the percentage of completion of each element of work. The Application must also specify the value of materials and goods properly delivered to Site for incorporation into the Works and separate categories for variations, day works and any other items. Subject to the written permission of CBRE's Project Manager, the Sub-Contractor may, in lieu of issuing the Application, issue a valid GST invoice which for the purposes of this clause 4 is included within the meaning of the Application.

4.5 The due date (the "Due Date") for payment of an Application shall be thirty one days following receipt of the Application by CBRE, however the payment will be back to back i.e., will be paid to the Sub-contractor only after receipt of relevant payments by CBRE from the Client.

4.6 CBRE shall issue a payment notice (the "Payment Notice") to the Sub-Contractor no later than five days after the Due Date specifying the amount (if any) of the payment proposed to be made and the basis upon which the payment has been calculated.

4.7 In the event CBRE fail to issue the Payment Notice within the time specified in clause 4.6 the Sub-Contractor shall notify CBRE in writing of the failure not later than 7 days after the Due Date.

4.8 Upon receipt of the Payment Notice, or in the event CBRE fail to issue a Payment Notice, following the last day such a Payment Notice could have been issued by CBRE, the Sub-Contractor shall issue to CBRE a valid GST invoice for the amount stated in the Payment Notice. If the Sub-Contractor has issued a GST invoice as the Application, then where CBRE's Payment Notice is of a different value to the Application, the Sub-Contractor must either credit the original GST invoice and issue a new GST invoice which corresponds with the value shown on CBRE's Payment Notice or issue a GST credit note or additional GST invoice for the difference.

4.9 The final date for payment (the "Final Date for Payment") shall be 14 days after the Due Date or 14 days after receipt of the valid invoice issued pursuant to Clause 4.8 whichever is the later.

4.10 For the avoidance of doubt CBRE shall not be obliged to make payment in the absence of a valid GST invoice for the value stated in the Payment Notice referred to in Clause 4.8 and the Sub-Contractor shall not be entitled to exercise its rights under Clauses 4.17 or 4.20 unless and until such a valid GST invoice has been received by CBRE.

4.11 Not prior to the issue of the Payment Notice and not later than the Final Date for Payment CBRE may give the Sub- Contractor written notice (the "Pay Less Notice") of CBRE's intention to pay less than the amount specified in the Payment Notice and the Pay Less Notice shall state the sum CBRE consider to be due on the date the Pay Less Notice was issued and the basis upon which the sum was calculated.

4.12 Where applicable, the provision of accurate test records, as manufactured drawings and full operating and maintenance manuals shall be a condition precedent to final payment. CBRE reserves the right to withhold payment of such sums as it deems necessary to obtain these documents from other commercial organizations.

4.13 Notwithstanding anything else stated herein if any party in the contractual chain, for which the Works form a part, becomes insolvent then CBRE will not be required to make any further payments to the Sub-Contractor until such time and to such extent as CBRE receives further payment from the Client in respect of the Works.

4.14 Notwithstanding any right entitling the Sub-Contractor to payment CBRE shall be entitled to deduct from or set off against any money (including retention monies) due to the Sub-Contractor, whether under the Sub-Contract or any other contract or order or arrangement between the parties, any sum or sums for which the Sub-Contractor is liable to CBRE under the Sub- Contract or any other contract or order or arrangement between the parties provided that a Pay Less Notice is served by CBRE five days prior to the Final Date For Payment as defined in accordance with clause 4.11 above.

4.15 Where appropriate retention shall be deducted at the agreed rate or at the rate included within the Main Contract and shall be released to the Sub-Contractor at the end of the defect liability period provided that the Sub-Contractor has rectified all known defects.

4.16 The final payment shall evidence full and final settlement of all sums due to the Sub-Contractor in respect of the Sub-Contract but shall not relieve the Sub-Contractor of any of his remaining responsibilities or liabilities under the Sub-Contract.

4.17 In the event that CBRE fail to pay the amount certified under this clause 4 by the Final date for Payment and such failure shall continue for seven days after the Sub-Contractor has given to CBRE written notice of his intention to suspend performance of his obligations under the Sub-Contract specifying the grounds on which it is intended to suspend performance then the Sub-Contractor may suspend such performance of his obligations under the Sub-Contract until payment is made in full.

4.18 Each invoice and Application issued under this Sub-Contract must be supplied in the format required by CBRE and will in any event contain the following information:

a. the number of the Order;

b. the address of the Site to which the Works relate;

c. the period to which the invoice or Application relates;

d. a breakdown of the Work completed.

4.19 The Sub-Contractor must issue his final Application or invoice within 30 days of the Works being completed. Any invoice received after 60 days of the Works being completed will not be accepted by CBRE.

4.20 In the event of the Sub-Contractor's insolvency CBRE shall not be obliged to pay any sum due to the Sub-Contractor and CBRE may employ others to complete the works and perform the Sub-Contractor's obligations under this contract. Within 3 months of completion of the works and performance of the Sub- Contractor's obligations CBRE shall prepare an account of the costs, expenses and losses suffered as a consequence of the Sub-Contractor's insolvency and shall be entitled to deduct the same from any sums due to the Sub-Contractor under the Sub-Contract. CBRE shall notify the Sub-Contractor of the sum due if any by way of a Payment Notice issued not later than 3 months following completion of the Works

5 The Sub-Contractor's General Obligations

5.1 The Sub-Contractor shall provide the Works: -

a. with reasonable skill, care and diligence;

b. in accordance with the Order and other terms of the Sub-Contract;

c. in accordance with all instructions issued by CBRE; and

d. in a timely and professional manner.

5.2 The Sub-Contractor shall use reasonable skill, care and diligence to ensure compliance with: -

a. all Applicable Laws and regulations, Site rules, safety and security procedures notified by CBRE or the Client and all health, safety and hygiene regulations required by law, or which otherwise form an industry standard (including, but not limited to, any applicable safety guidance and recommendations approved or published by the Health and Safety Executive (or its successor));

b. any manufacturer's guarantees or recommendations; and

c. any rules and regulations issued by the Client to the CBRE governing the performance of the Main Contract Works at the Site.

5.3 The Sub-Contractor shall provide all resources necessary to carry out and complete Works.

5.4 The Sub-Contractor shall ensure that its employees, agents and contractors are fully aware of all of the matters referred to in clause 5.2 and shall procure compliance by its employees, agents and contractors with all such rules, procedures and requirements.

5.5 Without prejudice to the generality of clause 5.2(a), the Sub-Contractor shall ensure that it holds and that all of its employees, agents and contractors hold all relevant licences, permits and authorisations to allow the lawful performance of the Works at all times.

5.6 The Sub-Contractor shall have access only to such parts of the Site as are reasonably necessary for the purpose of providing the Works and shall ensure that its employees, agents and contractors do not enter other parts of the Site.

5.7 The Sub-Contractor shall without additional cost, provide upon request suitable facilities/attendance in order that CBRE or the Client may make detailed inspection and measurement of the Works during the Sub-Contract at all reasonable times.

6 Progress

6.1 The Sub-Contractor shall provide to CBRE a programme for the performance of the Works within 5 Working Days from the date of the Order. The programme must comply with any dates stated upon the Order and with any Main Contract programme. Such programme will not be accepted by CBRE until such time as CBRE's Project Manager confirms so in writing.

6.2 The Sub-Contractor shall proceed regularly and diligently with the Works in accordance with the Sub-Contract so that the Works are completed by the Completion Date and in accordance with any programme agreed for the Works (including any milestone or sectional completion dates) and in such order, manner and time that they do not delay completion of the Main Contract Works or any portion thereof by the practical completion date, or any other such dates as may be stated, so that CBRE shall

not suffer any damage, loss or expense arising out of any failure by the Sub-Contractor to comply with his contractual obligations relating to programme, progress or completion.

6.3 The Sub-Contractor will maintain full co-operation with CBRE and other sub-contractors during the execution of the Works. The Sub-Contractor shall cause the minimum level of disruption reasonably possible in performing the Works and shall keep CBRE advised in good time of any significant disruption that may arise.

6.4 Unless the Sub-Contract specifies otherwise or CBRE otherwise requires, the Sub-Contractor shall submit regular progress reports (at least on a monthly basis but where requested by CBRE either weekly or fortnightly) to CBRE showing: -

a. Actual progress made to date;

b. Comparison of progress against the agreed programme for the Works;

c. Estimated value of the part of the Works completed to date;

d. Outstanding issues to be resolved;

e. Forecast completion date for the Works; and

f. Forecast total price at completion of the Works.

6.5 Additionally, the Sub-Contractor will comply with any requests from CBRE to record and demonstrate the progress of the Works both on and off the Site as to continuously compare actual performance with the progress required to achieve the Completion Date and any programme agreed for the Works (including any milestone or sectional completion dates) and/or the Main Contract programme or any other such dates as may be stated or agreed.

6.6 The parties hereto shall throughout the performance of the Works meet with such frequency as is specified or as may be reasonably required by CBRE, in order to monitor the progress of the Works, agree the effect of variations or deal with any other matters whatsoever arising under or in connection with the Sub-Contract. The Sub-Contractor may also be required to complete a detailed site log, the format of which is subject to prior agreement by CBRE.

6.7 If and when it becomes reasonably apparent that the commencement, progress or completion of the Works is, or is likely to be delayed, the Sub-Contractor shall forthwith (no later than 3 days of becoming aware) give written notice to CBRE of the material circumstances including the cause or causes of the delay and the anticipated effect and length of the delay, together with an estimate of the expected delay, if any, in the completion of the Works.

6.8 Subject to clause 6.9 and subject to the Sub-Contractor giving notice in accordance with clause 6.7, an extension of time to the Completion Date may be granted by CBRE if the delay notified by the Sub-Contractor is caused by any reason which enables CBRE to obtain an extension of time for completion of Main Contract Works under the Main Contract or is due to CBRE's default or other act of prevention or cause for which CBRE is liable. No extension of time shall be deemed to have been granted to the Sub-Contractor until confirmed in writing by CBRE. Alternatively, CBRE may instruct the Sub- Contractor to adopt special measures to overcome the effects of this delay.

6.9 The Sub-Contractor shall not be entitled to any extension to the Completion Date (or any milestone or sectional completion dates contained within any programme) in respect of any variation, suspension or delay caused by default of the Sub- Contractor.

6.10 CBRE shall notify the Sub-Contractor if CBRE deems that the rate of progress of the Works or any part thereof is too slow to meet the Completion Date (or any milestone or sectional completion dates contained within any programme) where this is not due to circumstances for which the Sub-Contractor is entitled to an extension to the Completion Date. Following receipt of such notice the Sub-Contractor shall at its own cost take such corrective measures as are in the reasonable opinion of CBRE necessary or prudent to remedy the likely delay and shall demonstrate the same to the reasonable satisfaction of CBRE.

6.11 Should progress of the Works be delayed beyond the agreed Completion Date or any extension thereof, as a result of any act, omission or default of the Sub-Contractor, the amount of liquidated and ascertained damages payable to the Client and/ or any direct loss or expense suffered or incurred or likely to be suffered or incurred by CBRE shall be deducted from the price agreed for the Works, or otherwise recovered as an outstanding debt to CBRE.

6.12 All timescales and dates in a Sub-Contract must be met by the Sub-Contractor. Any failure to meet such timescales and dates shall be treated as a breach which cannot be remedied and shall entitle CBRE to terminate the Sub-Contract without affecting any other of CBRE's rights or remedies.

7 Measurement of Work Executed

7.1 The Sub-Contractor will, on request, carry out and submit for consideration such measurements and other calculations as necessary to agree any Application with CBRE to the satisfaction of the CBRE Project Manager (and where applicable CBRE's Client).

7.2 The Sub-Contractor shall give adequate written notice to CBRE before the covering up of any work which requires inspection and / or measurement.

7.3 Should the Sub-Contractor fail to give such notice, he is to uncover the work as required and reinstate and make good afterwards all at his own expense.

7.4 Unless otherwise stated within the Order the Sub-Contract will not be subject to re-measure.

8 Equipment, Facilities and Resources

8.1 The Sub-Contractor shall, at his own expense, provide all the Sub-Contractor's equipment necessary for the proper execution of the Works and shall keep the Sub-Contractor's equipment in good repair and safe condition. CBRE shall not be required to provide any facilities, services, materials, equipment, tools or any other matter for the performance of the Works unless specifically set out in the Order.

8.2 The Sub-Contractor shall be responsible for supplying all goods which are supplied as part of the Works adequately protected to prevent accidental damage during the course of the Main Contract Works and until such time as a certificate of practical completion is issued.

8.3 The Sub-Contractor shall provide all resources necessary (at the Sub-Contractor's expense) to

execute and complete the Works in accordance with any programme.

8.4 CBRE may at any time, upon giving reasonable notice, examine and copy those of the Sub-Contractor's books, records and accounts which relate to the provision of the Works

8.5 The Sub-Contractor shall, following receipt of reasonable notice from CBRE, allow, during normal business hours, employees and/or other representatives of CBRE and/or the Client to have access to anywhere reasonably necessary (including areas of work, manufacturing places, vehicles, offices) for any purpose reasonably associated with the Sub- Contract, including assessing the Sub-Contractor's quality assurance procedures and auditing the compliance of the Sub- Contractor with the requirements of the Sub-Contract.

8.6 Representatives of CBRE and/or the Client may undertake unannounced inspections of the Works being performed and interview the Sub-Contractors employees, agents and contractors on Site in order to monitor the Works.

9 Instruction

9.1 Any instructions, drawings, specifications or other information required to be provided to the Sub-Contractor and related to the Works will be issued in writing by CBRE.

9.2 The Sub-Contractor will promptly execute any instructions issued to him by CBRE within the existing agreed timeframe for the Works or such other period as may be agreed.

9.3 The Sub-Contractor must ensure that any instructions, drawings, specifications and any other information relating to his work received from any other source other than CBRE shall not be acted upon until written confirmation of instruction has been sought by the Sub-Contractor and issued by CBRE.

9.4 The Sub-Contractor will be held responsible for the consequences (including costs and delays) of any unauthorised deviation from the drawings, specification and other information issued to him by CBRE.

9.5 Instructions which will constitute a variation to the Sub-Contract shall be subject to valuation in accordance with clause 10 of this document.

9.6 No instruction issued by CBRE to the Sub Contractor shall vitiate or invalidate the Sub-Contract.

10 Variations

10.1 No variations or extra works of any kind are to be carried out without prior written instruction by CBRE. However, CBRE may, without invalidating this Sub-Contract, issue instructions requiring an addition to, omission from, or other change in the Works or the order or period in which they are to be carried out and may instruct the Sub-Contractor to comply with any instruction prior to any price or programme implication being agreed.

10.2 Within 5 Working Days of receipt of an instruction from CBRE, the Sub-Contractor shall advise the CBRE Project Manager in writing the associated cost and programme implications associated with the instruction. Should circumstances beyond the Sub-Contractor's control prevent adherence to the aforementioned timescale, then the Sub-Contractor is to submit budget costings and indicative programme implications within five Working Days to be followed by confirmation of firm details as

soon as is reasonably possible. Variations will not be admissible as a result of any error in the Order price in respect of quantities or interpretation.

10.3 Any instruction issued under clause 10.1 shall be valued by CBRE on a fair and reasonable basis using any relevant prices in the Order or any schedule of rates submitted by the Sub-Contractor which have been agreed by CBRE. In situations where there is no relevant prices in the Order or an agreed schedule of rates, the Sub-Contractor will be required to demonstrate that his submitted rates have been calculated in accordance with the principles of his Order price by production of cost invoices, timesheet and mark-up/ profit allowances. Any such prices will be subject to agreement by CBRE and/or the Client as applicable.

10.4 Where the Sub-Contractor considers that the nature of variation work would preclude proper measurement for valuation purposes he may, prior to commencement, make written application to CBRE within seven days minimum of the proposed commencement of the works, for permission to execute the works on a day work basis. In the absence of prior agreement, it will be for CBRE to determine the correct method of valuation to arrive at a fair and reasonable price.

10.5 Where it is agreed that the work shall be carried out as day works it is the Sub-Contractor's responsibility to familiarise himself with the correct procedure, timescale for submission etc and to fully comply with such requirements. The rates used shall be in accordance with the current RICS definition of the applicable prime costs of day works and the percentage addition to prime cost will, if not detailed within the documents enclosed with or referred to in the Order, be agreed with CBRE in good faith.

10.6 Where in the opinion of the Sub-Contractor, the nature or extent of a variation instruction will result in an extension of time being required for completion of the additional works, or of the Works as a whole, the Sub-Contractor shall immediately notify CBRE in writing in accordance with clause 6 of this document.

10.7 It should be noted that a variation order/ instruction which deletes work contained within the original Order may result in the date for completion in the agreed programme being advanced.

11 Intellectual Property Rights

11.1 All Intellectual Property Rights in or arising out of any goods, materials, designs, drawing and specifications provided by CBRE in connection with the Sub-Contract shall remain at all times vested in, and the property of, CBRE. Where designs, products, or any developments are specifically produced or developed by the Sub-Contractor for CBRE ("Bespoke Works") in connection with this Sub-Contract, all Intellectual Property Rights in such Works shall be the exclusive property of CBRE.

11.2 The Sub-Contractor hereby assigns (or shall procure the assignment) to CBRE absolutely, with full title guarantee, all right, title and interest in any present and future Intellectual Property Rights in or arising out of any Bespoke Works for the full term of such rights and all renewals and extensions, together with all rights of action and remedies in relation to infringements thereto and hereby waives or shall procure a waiver of all moral rights in such Bespoke Works. At the request of and at no additional cost to CBRE, the Sub-Contractor shall promptly do all such further things and sign all documents or instruments necessary to vest all Intellectual Property Rights in or arising out of any Works in CBRE.

11.3 The Sub-Contractor shall indemnify and keep indemnified CBRE and its directors, officers, employees and agents from and against any and all damages (including legal fees and expenses) that may be awarded or agreed to be paid to any third party in respect of any claim or action that the normal operation, possession or use of the Bespoke Works by CBRE or the Client infringes the confidentiality or other Intellectual Property Rights of the said third party.

11.4 The parties agree that the Bespoke Works (and all other things in which CBRE holds the Intellectual Property Rights pursuant to clause 10.1):

11.4.1. may only be used by the Sub-Contractor as necessary to perform the Sub-Contract; and

11.4.2. shall not be made available to any third party (other than the Client where required under the Main Contract) without CBRE's prior written consent.

12 Confidentiality

12.1 The Sub-Contractor shall not during or after termination of this Sub-Contract use (other than in the performance of this Sub- Contract) or disclose to any other person any Confidential Information of CBRE or the Client, except that any obligations contained in this clause shall not prevent any disclosure of: -

a. Confidential Information which is required by Applicable Laws, court order or any legal or regulatory authority, which is required to comply with the rules of any relevant stock exchange or disclosure to a party's professional advisors acting in their capacity as such; or

b. CBRE's Confidential Information where the Sub-Contractor has obtained the prior written consent of CBRE to such disclosure.

12.2 The Sub-Contractor acknowledges the importance of protecting the confidentiality of CBRE's and the Client's Confidential Information and shall ensure that all its employees, agents and contractors are aware of this and shall procure that they comply with confidentiality obligations equivalent to those of the Sub-Contractor in this Sub-Contract. The Sub-Contractor shall, if requested by CBRE, require all of its relevant employees, agents and contractors to enter into specific confidentiality agreements (which may be directly with CBRE, if so requested) protecting the Confidential Information of CBRE and the Client, in terms approved by CBRE and where the Sub-Contractor is a party to such agreements, shall take all steps necessary to enforce such agreements.

12.3 The Sub-Contractor shall not publicise or disclose the existence or content of the Sub-Contract, its relationship with CBRE, or CBRE's relationship with the Client, without the prior written agreement of CBRE.

12.4 The Sub-Contractor shall not, without the prior written approval of CBRE, take or authorise the taking of any photographs for use in any publicity or advertising, or publish alone or in conjunction with any other person or article, photographs or other illustrations relating to the Works, the Client or the Site, nor shall it impart to any publication, journal or newspaper or any radio or television programme any information relating to the Sub-Contract.

12.5 The Confidential Information of CBRE shall include all know-how, patents, copyrights, design rights and any other intellectual property rights arising from the execution of the Sub-Contract.

12.6 Any Confidential Information shall be returned to CBRE or deleted by the Sub-Contractor at the

request of CBRE.

13 Data Protection

13.1 Definitions**:** In this Clause 13, the terms "Data Controller" and "Data Subject" have the meanings set out in Applicable Laws.

13.2 The Sub-Contractor must at all times:

a. comply with all applicable Data Protection Legislation;

b. Process Personal Data only on behalf of CBRE (or, if so directed by CBRE, Clients) only to the extent, and in such manner, as is necessary for the purpose of lawfully performing its obligations under this Sub-Contract, or as is required by Applicable Law and otherwise in accordance with instructions given by CBRE from time to time;

c. save as set out in subsection (b), not modify, duplicate, replicate, amend or alter the contents of any Personal Data;

d. preserve the security and confidentiality of Personal Data and protect it against unauthorised or unlawful Processing or access, accidental loss, destruction, damage, alteration or disclosure;

e. ensure that the measures employed by or on behalf of the Sub-Contractor towards compliance with its obligations in this Clause 13 are appropriate to the harm which might result from any unauthorised or unlawful Processing or access, accidental loss, destruction, damage or disclosure of Personal Data that is Personal Data and having regard to the nature of the Personal Data concerned;

f. implement and comply with such other procedures and measures as CBRE may from time to time reasonably require in respect of Personal Data;

g. promptly provide to CBRE on request from time to time a written description of the technical and organisational measures employed for holding and Processing Personal Data and thereafter notify CBRE in writing of material changes to such measures from time to time;

h. notify CBRE immediately in writing (and by telephone and email if outside normal working hours) in the event of any breach by the Sub-Contractor or any sub-subcontractor of this Clause 13 or any loss of or unauthorised use or access to Personal Data (the foregoing each a "Security Incident") and thereafter promptly provide all cooperation, information and assistance and follow such instructions reasonably requested by CBRE with respect to the response to the Security Incident;

i. notify CBRE promptly in writing (and in any event within three (3) business days) of any data subject access request received by the Sub-Contractor (or any of its agents or subcontractors) in relation to Personal Data.

j. provide to CBRE copies of all Personal Data held by or on behalf of the Sub-Contractor and all other reasonable assistance in relation to a data subject who makes a subject access request satisfying the applicable legal requirements (or as otherwise directed by CBRE), whether the subject access request is given to the Sub-Contractor or any of its agents or to CBRE or a third party and CBRE gives to the Sub-Contractor details of the subject access request.

k. not cause or permit any subcontractor or any the Sub-Contractor affiliate to hold or Process Personal Data without CBRE's prior written consent (to be given or withheld in CBRE's sole and absolute discretion);

l. ensure that any Sub-Contractor Personnel, permitted sub-contractors and such sub-contractors' directors, officers, employees and agents act in accordance with this Clause 13 is bound by it as the Sub-Contractor is bound;

m. take all reasonable steps to ensure the reliability of any of the Sub-Contractor Personnel who have access to the Personal Data; and

n. ensure that only those of the Sub-Contractor Personnel who need to have access to the Personal Data are granted access to such data and only for the purposes of the performance of this Sub-Contract and all of the Sub-Contractor Personnel required to access the Personal Data are informed of the confidential nature of the Personal Data and comply with the obligations set out in this Clause 13.

13.3 The Sub-Contractor shall on demand, at all times during and after the term of this Sub-Contract, indemnify CBRE (and Client) and keep CBRE (and Client) indemnified on demand and held harmless from and against all losses, damages, claims, costs, or expenses and other liabilities (including fines and legal fees) incurred by, awarded against or agreed to be paid by CBRE (or Client) arising out of or in connection with any breach of the Sub-Contractor's obligations under this Clause 13.

14 Non-Solicitation

In order to protect the value of CBRE's client contacts, the Sub-Contractor undertakes, in relation to any works similar or connected to the Works, during the term of this Sub-Contract and for 12 months thereafter not to directly or indirectly (including through any associated companies or other associated individuals) solicit orders from, supply, quote, tender or carry out any works whatsoever for the Client. Should the Client approach the Sub-Contractor, the Sub-Contractor will refuse any such approach and refer the Client to CBRE. If the Client will only deal with the Sub-Contractor, the Sub-Contractor shall pay to CBRE a commission of an amount equal to the amount that CBRE would have earned on the transaction had the supply been made through CBRE.

15 Liability, Insurance and Indemnity

15.1 The Sub-Contractor shall be liable for and shall indemnify and keep indemnified CBRE and its directors, officers, employees and agents from and against any and all claims, demands, proceedings, damages, losses, liabilities, costs, charges and expenses (including professional fees on a full indemnity basis) of whatever nature which are brought against or incurred or suffered by CBRE arising out of or in connection with the Sub-Contractor's breach of the Sub-Contract or negligence or otherwise arising out of or in connection with the Sub-Contractor's, its employees, directors, contractors or agents activities in relation to the Sub-Contract, including but not limited to claims for (i) death or personal injury, (ii) loss of or damage to property (iii) any economic loss, loss of profit, revenue, anticipated savings, data, use, contract, goodwill, opportunities or business and (iv) any indirect or consequential loss or damage, in each case whether suffered by CBRE, the Client or any other third party.

15.2 Subject to Clause 15.4, CBRE shall not be liable to the Sub-Contractor, or to any of the Sub-Contractor's employees, agents or contractors, for any damages and/or compensation in respect of

claims for personal injury or death suffered by any of the Sub-Contractor's employees or other staff. Subject to clause 14.3, the Sub-Contractor shall indemnify and keep indemnified CBRE and its directors, officers, employees and agents from and against all claims, demands, proceedings, damages, losses, liabilities, costs, charges, expenses (including professional fees on a full indemnity basis) of whatever nature which are brought against or incurred or suffered by CBRE in connection with such claim.

15.3 The indemnities in Clauses 15.1 and 15.2 shall not apply to any damages, losses, liabilities, costs and expenses:

a. to the extent caused by the negligence or willful act or omission of CBRE; and

b. to the extent caused by any breach or non-performance by CBRE of this Sub-Contract.

15.4 Nothing in this Sub-Contract shall exclude or restrict the liability of either party to the extent prohibited by Applicable Laws and in particular nothing in this Sub-Contract shall limit or exclude liability for death or personal injury caused by negligence; or for fraudulent misrepresentation or other fraud.

15.5 The Sub-Contractor shall take out from reputable insurers and keep in force the following insurances:

a. a 'contractor's all risk policy' (including third party coverage) covering all Works at the Site and all plant, materials and equipment at the Site (including the Sub-Contractors' equipment) intended for incorporation in the Works, on a 'full replacement value' basis, and in any case with a limit of not less than Rupees [*INSERT SUBCONTRACT VALUE*];

b. all insurance policies required to be maintained under Applicable Laws in respect of the Works, the personnel of the Sub-Contractors, including insurance in respect of any liabilities for workmen's compensation under the Employees' Compensation Act, 1923.

c. insurance for an amount of not less than the Rupee equivalent of INR 6,18,80,000 against liability for damage or death or personal injury occurring to any person or to any property (other than property forming part of the Works) due to or arising out of the acts, omissions, default, etc., of the Sub-Contractor.

d. Professional indemnity insurance of not less than INR 5,60,00,000.

15.6 The Sub-Contractor must, prior to commencing the Works, ensure that the current copies of his insurance Certificate(s) are held by CBRE.

15.7 Such insurances shall be endorsed or amended as to be considered primary, and any other insurance maintained by CBRE shall be excess and not contributory with this insurance or any other person.

15.8 The Sub-Contractor shall have the right to require increases in the limits of liability described above, if the sub-contract value is increased or if required by the Client.

15.9 Insurance policy obtained by the Sub-Contractor shall include a waiver of any right of subrogation of the insurers thereunder against CBRE, Client and their respective assigns, affiliates, personnel, and of

any right of such insurers under such policies to any set-off or counterclaim or any other deduction, whether by attachment or otherwise, in respect of any liability of any such person insured under any such policy.

15.10 The insurance policy to be obtained by Sub-Contractor pursuant to this Contract shall name CBRE and the Client and its assignees, affiliates and any other party required by CBRE as additional named insureds and loss payees, as their respective interests may appear.

16 Goods and Materials supplied by the Sub-Contractor

16.1 All goods and/or materials supplied as part of the Works shall be as specified in, and comply with the requirements of, the Order. Where standards of quality are not specified for the goods and/or materials in the Order, such goods and/or materials shall be of the best available quality suitable for the purposes for which they are intended and shall comply with the Main Contract.

16.2 T he Sub-Contractor shall ensure that the benefit of any warranty, guarantee or other protections provided by the manufacturer or other supplier of the goods and/or materials supplied as part of the Works shall extend to CBRE and the Client, or shall be capable of transfer to CBRE or the Client.

17 Ownership, Title and Risk

17.1 Ownership and title in all products, goods and materials supplied under the Sub-Contract shall pass to CBRE on delivery.

17.2 Ownership and title in items issued to the Sub-Contractor on a "free issue" basis by CBRE shall remain with CBRE at all times. Risk of loss of or damage to any such items shall pass to the Sub-Contractor on delivery and shall remain at the Sub- Contractor's risk until returned to the custody of CBRE.

18 Site Attendance

18.1 If the Sub-Contractor is required to attend the Site for any activity whatsoever, it is a condition of the Sub-Contract that it and all its employees, agents and contractors have read, understood and fully comply with the CBRE Health and Safety Rules for Contractors (which is available upon request) prior to and during the execution of any Works on Site.

18.2 The Sub-Contractor is responsible for arranging access to the Site. This must be arranged by the Sub-Contractor through a CBRE representative at least 48 hours prior to a visit. CBRE will not be held responsible for any costs incurred by the Sub-Contractor for failure to arrange access. CBRE cannot guarantee that car parking is available on Site and no additional costs will be accepted in respect of car parking and/or any other travel related costs.

19 Supervision

19.1 At all times during the carrying out of the Works the Sub-Contractor shall provide all necessary supervision to ensure the proper execution of the Works and shall have a competent person in charge on the Site who shall be authorised to accept instructions and directions on behalf of the Sub-Contractor**.**

19.2 The Sub-Contractor shall provide such evidence as CBRE may reasonably require relating to the

suitability and competence of any person employed by the Sub-Contractor in the performance of the Works. CBRE shall have the right to require the Sub-Contractor to provide a competent substitute for any person so employed who in CBRE's opinion is incompetent, negligent or otherwise unsuitable. For the avoidance of doubt, should the Sub-Contractor be unable to satisfy CBRE in their reasonable opinion that any person is suitable, then CBRE will have no alternative but to refuse entry and/or commencement of the Works and/or cease the progress of the Works. In these circumstances, CBRE shall not be responsible for any abortive or additional costs the Sub-Contractor may incur as a result. Furthermore, should CBRE incur any costs, either itself or from third parties (including the Client), then such costs will be deducted from the Sub-Contractor in accordance with clause 4.10.

20 Drawings

20.1 Where applicable, the Sub-Contractor will be required to provide as manufactured/ as installed drawings progressively throughout the Sub Contract, and for final submittal to meet CBRE and their Client's satisfaction, within one month of completion of the this Sub-Contract.

20.2 Unless otherwise stated within the contract documentation all drawings are to be in the approved CBRE format bearing the standard CBRE logo to allow direct submission to the Client for record information.

21 Defects Liability

Unless otherwise stipulated the defects liability period applicable to the Works will be 12 months from the date of practical completion for the whole of the Main Contract Works. Any defects, shrinkages or other faults in the Works, which appear before expiry of the defects liability period or any materials or workmanship not in accordance with the contract specification, or frost damage occurring before practical completion of the Main Contract Works, shall be specified in a schedule of defects. As soon as possible after receipt of such schedule, the defects, shrinkages and other faults therein specified shall be made good by the Sub-Contractor (unless CBRE shall otherwise instruct in writing) entirely at the Sub-Contractor's cost.

22 Collateral Warranties and Guarantees

22.1 Where so stated in the Sub-Contract Order or required as an obligation of the Main Contract, the Sub-Contractor shall within seven days of any such request by CBRE provide CBRE with a performance bank guarantee ("the Guarantee") by a bank acceptable to CBRE on terms acceptable to CBRE. If the Sub-Contractor should fail to provide the required Guarantee, then CBRE shall be entitled to withhold payment equal to the value of the Guarantee until the end of the defects liability period.

22.2 The Sub-Contractor shall provide collateral warranties to the Client(s), and/or others if and as specified in the Main Contract and requested by CBRE in writing.

22.3 Where so stated in the Sub-Contractor Order or required as an obligation of the Main Contract, if the Sub-Contractor is a company, the final control and direction of which is exercised by another company, or companies, not party to the Sub- Contract, the Sub-Contractor will provide CBRE with a parent company guarantee on terms acceptable to CBRE if required. The Sub-Contractor shall not be entitled to receive any payment otherwise due until the parent company guarantee has been properly completed by the necessary parties and accepted by CBRE.

23 Termination

23.1 The Sub-Contractor's engagement under this Sub-Contract may be terminated by CBRE in the following circumstances: -

a. upon giving the Sub-Contractor not less than 2 weeks prior written notice at any time;

b. by written notice with immediate effect if the Sub-Contractor has any corporate action, application, order, proceeding or appointment or other step taken or made by or in respect of it for any composition or arrangement with creditors generally, winding-up other than for the purpose of a bona fide scheme of solvent reconstruction or amalgamation, dissolution, administration, receivership (administrative or otherwise) or bankruptcy, or if it is unable to pay its debts as they fall due, or if it ceases to trade or if a distress, execution or other legal process is levied against any of its assets which is not discharged or paid out in full within 3 Working Days or if any event analogous to any of the foregoing shall occur in any jurisdiction in which the Sub-Contractor is incorporated, resident or carries on business;

c. by written notice with immediate effect if the Sub-Contractor is in breach of any of its obligations under this Sub- Contract and, if the breach is capable of remedy, the Sub-Contractor has failed to remedy such breach within 5 Working Days of receipt of a request to do so.

23.2 Notwithstanding Clause 23.1 above, this Sub-Contract shall automatically terminate in the event that CBRE's engagement under the Main Contract is terminated.

23.3 Notwithstanding any other provision of the Sub-Contract, in the event of any termination of this Sub-Contract for any default of the Sub-Contractor including (without limitation) pursuant to clause 23.1(b) or 23.1(c) or 23.2, CBRE reserves the right to withhold or suspend payment to the Sub-Contractor until such time as CBRE has assessed (i) the additional cost to CBRE of completing the Works (or arranging for a third party to complete the Works), (ii) any other costs and liabilities incurred by CBRE in connection with the termination, (iii) the quality and value of the Works carried out by the Sub-Contractor up to the date of termination in connection with the Sub-Contract and (iv) any other issues that CBRE considers require CBRE's assessment in connection with the Works and/or this Sub-Contract. In accordance with clause 4.10, CBRE shall be entitled to set off against any sums that are due to the Sub-Contractor any amounts calculated in accordance with this clause 22.3 and any other amounts owed to CBRE by the Sub-Contractor whether under the Sub-Contract or any other contract or order or arrangement between the parties.

23.4 CBRE shall not be liable to the Sub-Contractor for any loss of or damage to profit, revenue, anticipated savings, wasted costs, contract, goodwill, opportunities or business or any indirect or consequential loss or damage in the event that CBRE terminates the Sub-Contract in accordance with this clause 23.

23.5 Termination, howsoever, caused shall not affect:

a. any right or liabilities which have accrued prior to the time of termination;

b. the continuance in force of any provision of this Sub-Contract which expressly or by implication

is intended to come into or continue in force after termination (including, but not limited to, clause 3 (Main Contract), clause 5 (The Sub- Contractor's General Obligations), clause 11 (Intellectual Property Rights), clause 12 (Confidentiality), clause 15 (Liability, Insurance and Indemnity), clause 16 (Goods and Materials supplied by the Sub-Contractor), clause 23.3 (Termination), clause 23.4 (Termination), clause 23.5 (Termination), clause 23.6 (Termination), clause 25 (Third Party Rights), clause 27 (Severability) and clause 30 (Governing Law)) .

23.6 On termination of the engagement of the Sub-Contractor for any reason, the Sub-Contractor shall, where applicable, take immediate steps to bring to an end its performance of the Works in an orderly manner but with all reasonable speed and economy and shall forthwith vacate the Site. In addition the Sub-Contractor shall deliver to CBRE all Confidential Information of CBRE and the Client and correspondence and documentation (including but not limited to engineers reports and test certificates) relating to the Works.

23.7 On termination of the engagement of the Sub-Contractor for any reason:

a. CBRE shall have the right to assign the Sub-Contract to the Client, its successors and assigns in connection with termination of this Sub-Contract, upon a request by the Client for the Sub-Contract to be assigned to it or its designees, and Sub-Contractor agrees to such assignment and execute any documentation in connection therewith reasonably requested by CBRE; and

b. Sub-Contractor shall require its sub-subcontractors to undertake their scope of works on the same terms and conditions which have been agreed by such sub-subcontractor with the Sub-Contractor.

24 Step-in

CBRE at its sole discretion may, in lieu of giving notice of termination under Clause 23.1.3, by written notice to the Sub- Contract remove from the scope of the Sub-Contractor any portion or portions of the Works and may elect to either step-in itself or appoint third parties to complete and maintain such portion(s). In such event CBRE may recover the reasonable costs associated with the step-in or appointment under this clause from monies otherwise due or becoming due to the Sub-Contractor, or otherwise recovered as an outstanding debt to CBRE. The Sub-Contractor shall have no right or claim against CBRE in respect of this clause.

25 Third Party Rights

No person who is not a party to the Sub-Contract shall have any rights under the Contracts to enforce any term of the said Sub-Contract.

26 Assignment and Sub-Contracting

26.1 CBRE may at any time assign, transfer, charge or deal in any other manner with any of its rights or obligations under the Sub-Contract.

26.2 The Sub-Contractor shall not assign, transfer, charge, hold on trust for another or deal in any other manner with any of its rights or obligations under the Sub-Contract, nor purport to do so.

26.3 The Sub-Contractor shall not sub-contract, sub-let or otherwise delegate the performance of the Works without the prior written consent of CBRE. Such consent, if given, shall in no way relieve the Sub-Contractor of its responsibilities under the Sub-Contract.

27 Severability

If any one or more provisions of the Sub-Contract shall be declared to be invalid or unenforceable in any respect, the validity and enforceability of the remaining provisions shall not as a result in any way be affected or impaired. However, if any provisions shall be adjudged to be void or ineffective but would be adjudged to be valid and effective if part of the wording were deleted or the scope or periods reduced, they shall apply with such modifications as may be necessary to make them valid and effective while adhering as closely as possible to the original intent, period and scope of the provisions and the parties hereby undertake to make such modifications.

28 Disputes

If a dispute arises out of or in connection with the Sub-Contract or the performance, validity or enforceability of it (Dispute) then, either party shall give to the other written notice of the Dispute, setting out its nature and full particulars (Dispute Notice), together with relevant supporting documents. On service of the Dispute Notice, the parties shall attempt in good faith to resolve the Dispute. If the parties of are for any reason unable to resolve the Dispute within 30 days of service of the Dispute Notice, the Dispute shall be submitted to arbitration by a sole arbitrator, appointed by CBRE, under the Arbitration and Conciliation Act, 1996. The place of arbitration shall be Delhi and the language of arbitration shall be in English.

29 Governing Law

The Sub-Contract and any dispute or claim (including any non-contractual dispute or claim) that arises out of or in connection with it shall be governed by and construed in accordance with the laws of India and the parties irrevocably submit to the non-exclusive jurisdiction of the Courts of India for the determination of all disputes or claims (including non-contractual disputes or claims) which may arise out of or in connection with the Sub-Contract.

Work Order to Sub-Contract
Dated [*insert date of sub-contract*] ("Sub-Contract")
Between [*insert name of Contractor*] ("Sub-Contractor") and
CBRE South Asia Pvt Ltd] ("CBRE")

This Work Order ("WO") effective [*insert date*] specifies the Works that Sub-Contractor will perform under the Sub-Contract.

I. Project

[*insert name and details of the Project*]

II. Site

[*insert full address/location of the Project Site*]

III. Scope of work

[*insert description of Work to be performed under this WO along with specifications, drawings, bill of quantities etc.*]

IV. Schedule

[*insert schedule of Work mentioning the commencement date, completion date, any milestone dates etc.*]

V. Fees and Expenses:

[*insert*]

VI. Liquidated Damages

a. Sub-Contractor guarantees the performance of the Works such that, and Sub-Contractor ensures that, the Works (including any milestones) for the Project shall be completed as per the Schedule set out in Clause IV above. If the Works or any milestone are not completed as aforesaid, Sub-Contractor shall pay to CBRE, as liquidated damages and not as a penalty, [insert percentage] of the Contract Price for each week (and pro rata for part thereof) by which the completion of the Works for the Project is later than the time for completion (the "Delay Liquidated Damages"), subject to a cap of [insert percentage] of the Contract Price.

b. Sub-Contractor shall pay Delay Liquidated Damages required under Clause VI.a fortnightly in arrears by wire transfer or deposit of immediately available funds to such account as CBRE shall direct, with the first such payment to occur no later than 7 days of CBRE invoicing of such Delay Liquidated Damages. CBRE shall be entitled to withhold any Delay Liquidated Damages amount from any payment to be made to Sub-Contractor. Such withheld amount would be released on CBRE furnishing a bank guarantee or any other security in a form and manner satisfactory to CBRE.

VII. Bank Guarantee

[*insert details*]

Upon execution hereof, the terms and conditions of the Sub-Contract shall be incorporated within and govern this WO.

This WO may be signed in counterparts, each of which will be deemed an original but all of which will together constitute the WO.

ACCEPTED AND AGREED TO:

SIGNED AND DELIVERED by the)
Withinnamed _____)
BY THE HAND OF Mr. …….)

SIGNED AND DELIVERED by the)
Withinnamed CBRE South Asia Pvt. Ltd.)
BY THE HAND OF Mr. …….)